

CHILD'S NAME: 	CASE NUMBER:
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**DISPOSITIONAL ATTACHMENT:
REMOVAL FROM CUSTODIAL PARENT—PLACEMENT WITH PREVIOUSLY NONCUSTODIAL PARENT
(Welf. & Inst. Code, §§ 361, 361.2)**

1. ☐ The child is a person described under Welf. & Inst. Code, § 300 (*check all that apply*):
- | | | | | |
|---------------------------------|---------------------------------|---------------------------------|---------------------------------|---------------------------------|
| ☐ 300(a) | ☐ 300(c) | ☐ 300(e) | ☐ 300(g) | ☐ 300(i) |
| ☐ 300(b) | ☐ 300(d) | ☐ 300(f) | ☐ 300(h) | ☐ 300(j) |
- and is adjudged a dependent of the court.**

Circumstances justifying removal from custodial parent

2. There is clear and convincing evidence of the circumstances stated in Welf. and Inst. Code, § 361 regarding the persons specified below (*check all that apply*):

	<u>361(c)(1)</u>	<u>361(c)(2)</u>	<u>361(c)(3)</u>	<u>361(c)(4)</u>	<u>361(c)(5)</u>
a. ☐ Mother	☐	☐	☐	☐	☐
b. ☐ Presumed father	☐	☐	☐	☐	☐
c. ☐ Biological father	☐	☐	☐	☐	☐
d. ☐ Legal guardian	☐	☐	☐	☐	☐
e. ☐ Indian custodian	☐	☐	☐	☐	☐
f. ☐ Other (<i>specify</i>):	☐	☐	☐	☐	☐

3. ☐ The child ☐ is ☐ may be an Indian child, and, by clear and convincing evidence, including the testimony of a qualified expert witness, continued physical custody by the following person is likely to cause the child serious emotional or physical damage:

☐ mother	☐ biological father	☐ legal guardian
☐ presumed father	☐ Indian custodian	
☐ other (<i>specify</i>):		

4. Reasonable efforts ☐ were ☐ were not made to prevent or eliminate the need for the child's removal from the home.

5. ☐ The child ☐ is ☐ may be an Indian child, and,
- a. ☐ by clear and convincing evidence, active efforts were made to provide remedial services and rehabilitative programs designed to prevent the breakup of this Indian family, and those efforts were unsuccessful.
 - b. ☐ active efforts were not made to provide remedial services and rehabilitative programs designed to prevent the breakup of this Indian family.

6. **Based on the facts stated on the record, continuance in the home is contrary to the child's welfare and physical custody of the child is removed from** (*check all that apply*):

☐ mother	☐ biological father	☐ legal guardian
☐ presumed father	☐ Indian custodian	☐ other (<i>specify</i>):

Family finding and engagement

7. a. ☐ The county agency has made diligent efforts to identify, locate, and contact the child's relatives.
- b. ☐ The county agency has not made diligent efforts to identify, locate, and contact the child's family members.
 - (1) ☐ The county agency is ordered to make such diligent efforts, except for individuals the agency has determined to be inappropriate to contact because of their involvement with family or domestic violence.
 - (2) ☐ The county agency must submit a report to the court on or before (date):
detailing the diligent efforts made and the results of such efforts.

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Case plan development

8. a. ☐ The county agency solicited and integrated into the case plan the input of the ☐ child ☐ mother ☐ father ☐ representative of child's identified Indian tribe ☐ other (*specify*): _____.
- b. ☐ The county agency did not solicit and integrate into the case plan the input of the ☐ child ☐ mother ☐ father ☐ representative of child's identified Indian tribe ☐ other (*specify*): _____, and the agency is ordered to do so and submit an updated case plan within 30 days of the date of this hearing.
- c. ☐ The county agency did not solicit and integrate into the case plan the input of the ☐ child ☐ mother ☐ father ☐ representative of child's identified Indian tribe ☐ other (*specify*): _____, and the county agency is not required to do so because these persons are unable, unavailable, or unwilling to participate.

Custody of the child and services

9. a. The ☐ mother ☐ presumed father ☐ biological father was not residing with the child at the time that the events or conditions arose that brought the child within the provisions of Welf. & Inst. Code, § 300 and desires custody of the child. Placement with this parent would not be detrimental to the safety, protection, or physical or emotional well-being of the child. The child is placed with this parent.
- b. ☐ The parent indicated in item 9a is granted physical and legal custody of the child under the custody order and final judgment entered this day. Visitation with the child is as stated in the *Visitation Order—Juvenile* (form JV-205). The clerk of the juvenile court must file with the family court a completed *Custody Order—Juvenile—Final Judgment* (form JV-200) and *Visitation Order—Juvenile* (form JV-205). **Jurisdiction of the court is terminated.**
- c. ☐ The parent indicated in item 9a is granted custody of the child subject to the jurisdiction of the juvenile court. The county agency must conduct a home visit within three months and file a report with the court.
- d. ☐ The parent indicated in item 9a is granted custody of the child subject to the supervision of the juvenile court.
- (1) ☐ Family maintenance services are to be provided to the parent indicated in item 9a to allow that parent to retain later custody without court supervision. The parent is ordered to participate in the services stated in the case plan. Reunification services are not ordered for the person from whom the child was removed.
- (2) ☐ Reunification services are provided to the person from whom the child was removed, the ☐ mother ☐ presumed father ☐ biological father who is ordered to participate in the services stated in the case plan. Family maintenance services are not ordered for the parent indicated in item 9a.
- (3) ☐ Reunification services are provided to the person from whom the child was removed, the ☐ mother ☐ presumed father ☐ biological father and family maintenance services are to be provided to the parent indicated in item 9a. The parents are ordered to participate in the services stated in the case plan. The court will determine at a scheduled court hearing which parent, if either, will have custody of the child without court supervision.
10. The factual basis for the findings and orders in item 9 is stated on the record.

Siblings

11. ☐ The child does not have siblings under the court's jurisdiction.
12. ☐ The child has siblings under the court's jurisdiction. *Sibling Attachment: Contact and Placement* (form JV-403) is attached and incorporated by reference.

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Education

13. a. ☐ A limitation on the right of the parents to make educational decisions for the child is **not** necessary. The parents hold educational rights and responsibilities in regard to the child's education, including those described in rule 5.650(e)–(f) of the California Rules of Court. A copy of rule 5.650(e)–(f) may be obtained from the court clerk.
- b. ☐ A limitation on the right of the parents to make educational decisions for the child is necessary and those rights are limited as stated in *Findings and Orders Limiting Right to Make Educational Decisions for the Child, Appointing Educational Representative, and Determining Child's Educational Needs* (form JV-535) filed in this matter. The educational rights and responsibilities of the educational representative are described in rule 5.650(e)–(f) of the California Rules of Court. A copy of rule 5.650(e)–(f) may be obtained from the court clerk.
14. a. The child's educational needs ☐ are ☐ are not being met.
- b. The child's physical needs ☐ are ☐ are not being met.
- c. The child's mental health needs ☐ are ☐ are not being met.
- d. The child's developmental needs ☐ are ☐ are not being met.
15. ☐ The additional services, assessments, and/or evaluations the child requires to meet the unmet needs specified in item 14 or other concerns are:
- a. ☐ stated in the social worker's report.
- b. ☐ specified here:
16. ☐ The following persons are ordered to take the steps necessary for the child to begin receiving the services, assessments, and/or evaluations identified in item 15:
- a. ☐ Social worker.
- b. ☐ Parent (*name*):
- c. ☐ Surrogate parent (*name*):
- d. ☐ Educational representative (*name*):
- e. ☐ Other (*name*):
17. ☐ The ☐ mother ☐ presumed father ☐ biological father must ensure the child's regular school attendance and make reasonable efforts to obtain the education services necessary to meet the child's specific needs.

Advisement

18. **At the next status review hearing**, custody may be given to the parent with whom the child is currently placed and the jurisdiction of the court dismissed. If the child is removed from the parent with whom the child is currently placed and ordered placed in foster care, the case may be referred to a selection and implementation hearing under Welf. & Inst. Code, § 366.26. The selection and implementation hearing **may result in the termination of parental rights and adoption of the child and other members of the sibling group or, in the case of an Indian child for whom tribal customary adoption under section 366.24 is selected as the permanent plan goal, modification of parental rights and the adoption of the child and other members of the sibling group.**